



2025:AHC:177175-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 35230 of 2025

Saurabh Sahu

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Sabya Sachee Rai, Suneel Kumar Rai
Counsel for Respondent(s)	: C.S.C., Jai Krishna Upadhyay

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.

1. On oral prayer, learned counsel for the petitioner is permitted to correct the description of respondent no. 2.
2. Heard Shri Sunil Kumar Rai, learned counsel for the petitioner and Shri Ankit Prakash, learned counsel holding brief of learned counsel for respondent corporation.
3. Challenge has been raised to the impugned order dated 11.10.2023 and Recovery Citation dated 08.09.2024 seeking to recover Rs. 9,47,138/- from the petitioner towards electricity dues.
4. Presently, it is not clear if assessment procedure has been fully complied. Petitioner claims no opportunity of hearing was given to him before the impugned demand came to be created.
5. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioner may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioner before the Assessing Officer/respondent concerned under Clause 6.8 of the U.P. Electricity Supply Code, 2005.
6. Accordingly, writ petition is disposed of with a direction, subject to the petitioner depositing Rs. 2,50,000/- towards the disputed demand within a period of one month, he may file appropriate application before respondent concerned within a further period of one week therefrom. Subject to such compliance, respondent concerned may proceed to deal with and decide petitioner's objection by a reasoned and speaking order, strictly in accordance with law, after confronting the petitioner with all adverse material being relied against the petitioner and by giving

opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioner.

7. The amount to be deposited shall remain subject to final order that may be passed, in compliance of this order.

October 7, 2025

Nadeem

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)